

24NWLC56591 24NWLC56591

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-23

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Case Number: 24NWLC56591 Hearing Date: June 23, 2026 Dept: Y

24NWLC56591: AMERICAN EXPRESS NATIONAL BANK vs DANE DEVOGELAERE

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Dane DeVogelaere ("Defendant"). The Court has also reviewed the Opposition filed by Plaintiff American Express National Bank ("Plaintiff") and Defendant's reply.

As noted by Plaintiff, Defendant's Motion to Vacate Default Judgment and Motion to Stay ("Motion") was filed with the Court and served on Plaintiff on May 29, 2026.

Code of Civil Procedure section 1005 requires that "all moving and supporting papers shall be served and filed at least 16 court days before the hearing. . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and place of address are within the State of California." Proper notice of the motion has not been given.

The Court continues the hearing on Defendant's Motion to July 1, 2026 at 10:30 a.m. in Dept. Y so that proper notice of the motion can be given to Plaintiff. To the extent Plaintiff wishes to waive notice, the Court will hearing the Motion on its merits.

Clerk to give notice.